

SAAS PLATFORM SERVICES AGREEMENT

Agreement ID: SPSA-TV-CA-2025-011

Effective Date: October 15, 2025

Parties: TechVenture SARL (Customer) and CloudAxis Solutions SARL (Provider)

Governing law: Tunisia

1) Scope of Services

CloudAxis provides TechVenture with a cloud-based enterprise resource planning platform including financial management, HR, payroll processing, customer data storage, and business intelligence reporting modules.

2) Service Level Commitments

- Platform availability: 99.7 percent measured monthly (excluding maintenance)
- Planned maintenance window: Sundays 02:00 to 05:00 maximum 4 hours per month
- Incident response P1 (critical): acknowledgment within 30 minutes, resolution plan within 2 hours, full resolution within 8 business hours
- Data backup: automated daily incremental, weekly full backup retained 90 days
- Recovery Time Objective (RTO): 4 hours for P1 outages
- Recovery Point Objective (RPO): maximum 24 hours data loss

3) Data Protection Obligations

- CloudAxis must not transfer TechVenture data outside Tunisia without written consent
- CloudAxis must notify TechVenture of any data breach within 24 hours of discovery
- All personal data processed under this agreement is subject to Tunisian data protection law Act 63-2004 and any subsequent amendments
- CloudAxis must maintain ISO 27001 certification or equivalent throughout the term

4) Commercial Terms

- Monthly subscription fee: 34,500 TND excluding VAT
- Overuse compute charges: 280 TND per additional 100 GB per month
- Professional services: 850 TND per day on request
- Payment terms: Net 30 from valid invoice
- TechVenture may withhold disputed amounts with written reasons within 15 days of invoice receipt

5) Business Continuity and Liability

- CloudAxis must maintain a tested disaster recovery plan reviewed annually
- Liability cap: six months of subscription fees for direct damages
- Cap does not apply to data breach, intentional misconduct, or regulatory penalties caused by CloudAxis failure
- Force-majeure clause excludes planned infrastructure migrations

6) Termination

- Either party may terminate for material breach with 10 business days written notice
- TechVenture may terminate immediately if a data breach affects customer personal data
- Transition assistance: CloudAxis must provide 60 days of data export support at no additional charge after termination notice

7) Dispute Resolution

- Senior management negotiation within 5 business days of written notice
- If unresolved: mediation in Tunis within 20 calendar days
- If mediation fails: binding arbitration under CATO rules